Neil Gorsuch

Neil Gorsuch, 2017.**Neil Gorsuch** (born August 29, 1967, Denver, Colorado) associate justice of the Supreme Court of the United States from 2017.

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Gorsuch was nominated by Republican President Donald J. Trump in January 2017. After Democratic senators filibustered his nomination in April, the Senate's Republican majority changed the Senate's rules regarding Supreme Court nominees to remove the traditional 60-vote threshold needed to end debate and proceed to a vote (*see* cloture). Gorsuch was then confirmed by a vote of 54 to 45. In 2013, Senate Democrats, then in the majority, made similar changes to Senate rules to end continual Republican filibusters of nominations to lower courts and executive offices by Democratic President Barack Obama.

Education and early career

Gorsuch enrolled in Georgetown Preparatory School in Maryland after his mother, Anne Gorsuch, became the first woman administrator of the Environmental Protection Agency (EPA) in 1981. At Columbia University in New York City (B.A. 1988), Neil Gorsuch wrote politically conservative articles for the student newspaper and co-founded his own paper, *The Federalist Paper*, and a magazine, *The Morningside Review*. In 1991 he received a J.D. degree from Harvard Law School, where he was a classmate of Barack Obama.

After clerking for Judge David Sentelle of the U.S. Court of Appeals for the District of Columbia Circuit (1991–92) and simultaneously for Supreme Court justices Byron R. White and Anthony Kennedy (1993–94), he worked in private practice as an associate (1995–98) and then as a partner (1998–2005) of a prestigious Washington, D.C., law firm that specialized in representing corporate and white-collar clients in litigation involving the government. In 2004 he was awarded a

D.Phil. degree in law from the University of Oxford; his thesis formed the basis of a 2006 book, *The Future of Assisted Suicide and Euthanasia*, in which he wrote that "the intentional taking of human life by private persons is always wrong." In 2006 he was nominated to the U.S. Court of Appeals for the Tenth Circuit by President George W. Bush and was easily confirmed by the Senate.

Supreme Court nomination and confirmation

Gorsuch's eventual nomination to the Supreme Court arose under unusual circumstances: he was selected to fill a seat that had become vacant with the death of Justice Antonin Scalia in February 2016, during the last year of Obama's presidency, but had been unfilled since then because Senate Republicans had refused to schedule a vote, or even to hold hearings, for the nominee selected by Obama as Scalia's replacement—Merrick Garland, chief judge of the D.C. Circuit Court of Appeals, who was widely viewed as a judicial moderate. Despite vigorous complaints from Democratic leaders, who accused Republicans of cynically shirking their constitutional responsibility and of violating democratic norms, the seat remained empty through the U.S. presidential election in November 2016, which Trump unexpectedly won. Trump's nomination of Gorsuch, a more conservative jurist than Garland, was thus viewed as illegitimate by many Democrats, many of whom also objected to Gorsuch on more conventional grounds—i.e., on the basis of his jurisprudential record. Indignant at what they considered the Republicans' "theft" of a Supreme Court seat and encouraged by more-liberal elements of their constituencies, Democratic senators mounted a filibuster of Gorsuch's nomination, which Republicans then defeated by eliminating the filibuster for Supreme Court nominees, a change in Senate procedure so profound and far-reaching that both sides commonly referred to it as the "nuclear option."

Notwithstanding the political drama surrounding his nomination, there was no question that Gorsuch was well qualified to join the Supreme Court. As an appellate judge, he had acquired a reputation for producing elegantly written opinions in a solidly conservative vein. Indeed, he followed Scalia, a justice he admired, in his adherence to both originalism (in constitutional interpretation) and textualism (in statutory interpretation), approaches that emphasize the common

meanings of the terms in which a legal text is written and generally eschew as irrelevant the intentions or purposes of the drafters, even in cases in which the aims are clearly articulated in legislative history.

Select majority opinions written by Gorsuch

In a famous case decided by the Supreme Court in 2020, *Bostock* v. *Clayton County* (2020), Gorsuch ruled in a majority opinion that Title VII of the Civil Rights Act of 1964, which prohibits discrimination—including sex discrimination—by trade unions, schools, or employers involved in interstate commerce or doing business with the federal government, also applies to discrimination against gays (including lesbians) and transgender persons. According to Gorsuch, it follows from Title VII's "broad language" banning sex discrimination that "an employer who fires an individual merely for being gay or transgender defies the law." In *303 Creative LLC* v. *Elenis* (2023), Gorsuch spoke for the Court's majority in his ruling that a website designer in Colorado who wished to expand her services to include websites celebrating marriages could not be forced to include websites for same-sex marriages, because doing so would violate her right to the free exercise of religion under the First Amendment. And in *Bondi* v. *Vanderstok* (2025), Gorsuch's majority opinion overturned a ruling by the U.S. Court of Appeals for the Fifth Circuit by finding that legal requirements associated with gun sales under Gun Control Act of 1968 also applied to "ghost guns," or firearms assembled by the owner from separately purchased pieces or kits.

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CITATION INFORMATION
ARTICLE TITLE: Neil Gorsuch
WEBSITE NAME: Encyclopaedia Britannica
PUBLISHER: Encyclopaedia Britannica, Inc.
DATE PUBLISHED: 29 January 2026
URL: https://www.britannica.com/biography/Neil-Gorsuch
ACCESS DATE: March 12, 2026